

**PETITION FOR SEALING PURSUANT
TO VA. CODE § 19.2-392.12**

(Misdemeanors, Class 5 or 6 felonies, § 18.2-95, and felony offenses
punished as larceny that resulted in conviction or deferral/dismissal
and any related ancillary matters)

..... District Court

..... Circuit Court

CITY OR COUNTY

..... Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III v. Commonwealth of Virginia
NAME OF PETITIONER

I am petitioning to seal criminal history record information and court records, including electronic records, for the charge or conviction included in this petition. This petition is being filed pursuant to Va. Code § 19.2-392.12 as I was convicted of the charge or the charge was deferred and then dismissed. The charge or conviction I am requesting to seal has an offense date on or after January 1, 1986. If indicated below, I am also requesting to seal criminal history record information and court records for ancillary matters related to that charge or conviction.

A. MY INFORMATION

My full name is:

My date of birth is: 1991-04-17 My sex is: My race is:

My social security number is:

B. INFORMATION ABOUT CHARGE OR CONVICTION TO BE SEALED☐ I am requesting to seal a single charge or conviction. (List charge or conviction below).**OR**

☐ I am requesting to seal more than one charge or conviction. The charges and/or convictions that I am requesting to be sealed all arose out of the same transaction or occurrence and are eligible for sealing in the same petition. (**NOTE:** Ancillary matters are treated as part of the same transaction or occurrence.) List the first charge or conviction below and list additional charges or convictions on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A).

1. Specific charge or conviction:

DESCRIPTION OF CHARGE OR CONVICTION

2. This charge is a ☐ misdemeanor ☐ class 5 or 6 felony
☐ a violation of § 18.2-95 or any other felony offense for which I was
deemed guilty of larceny and was punished as provided in § 18.2-95.

3. Offense Information: (**CHOOSE ONE**)☐ I was convicted of the offense.**OR**☐ I had the charge deferred and it was then dismissed.

4. Case number for charge or conviction:

Date of final disposition or conviction:

Date of arrest:

Name of arresting agency:

Document control number (DCN), if available:

☐ Some or all of the above information is not reasonably available because

.....

5. My full name at time of arrest: ☐ Same as above

6. Court of final disposition:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

7. A copy of the warrant, summons or indictment is

☐ attached.

☐ not reasonably available because

C. INFORMATION ABOUT ANCILLARY MATTER(S) TO BE SEALED

☐ I am NOT requesting to seal an ancillary matter related to the charge or conviction listed on page 1.
(Continue to Section D of this form.)

OR

☐ I am requesting to seal an ancillary matter related to the charge or conviction listed on page 1. List the ancillary matter below. (If you are requesting to seal more than one ancillary matter, list additional ancillary matters on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A).)

1. Ancillary Matter

The specific ancillary matter I request to be sealed is **(CHOOSE ONE)**

☐ a violation or alleged violation of the terms and conditions of a suspended sentence, probation or parole;

☐ a violation or alleged violation of contempt of court;

☐ a charge or conviction for failure to appear; **OR**

☐ an appeal from a bail, bond, or recognizance order.

2. Case number for ancillary matter listed above: 0123-45-2026-CR-900123.00-AB-CDE/2201

Date of final disposition for ancillary matter:

Date of arrest for ancillary matter (if applicable):

Name of arresting agency for ancillary matter (if applicable):

Document control number (DCN), if available (if applicable):

☐ Some or all of the above information is not reasonably available because

3. Full name at time of ancillary matter: ☐ Same as on page 1

4. Court of final disposition for ancillary matter:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the charging document for the ancillary matter (if applicable) is

☐ attached

☐ not reasonably available because

D. SEALING ELIGIBILITY

1. Criminal History.

a. ☐ I have never been convicted of a Class 1 or 2 felony, or any other felony punishable by life in prison.

b. ☐ I have not been convicted of a Class 3 or 4 felony within the past 20 years.

c. ☐ I have not been convicted of any other felony within the past 10 years.

2. Eligibility Start Date. Check the box that describes your last contact with the court system for the charge(s) or conviction(s) to be sealed. **(CHOOSE A OR B BELOW)**
- a. ☐ The deferred charge against me was dismissed. Date of dismissal:
- OR**
- b. ☐ I was convicted and
- ☐ I was not sentenced to any term of incarceration. Date of conviction:
- OR**
- ☐ I was sentenced to a term of incarceration. Date released from incarceration:
- (If applicable)*
- ☐ After my conviction, I was later found in violation of my suspended sentence, probation, or parole, and
- ☐ I was not sentenced to any term of incarceration.
- OR**
- ☐ I was sentenced to a term of incarceration. Date released from incarceration:
3. Alcohol/Substance Use.
- a. ☐ The charge(s) or conviction(s) to be sealed did not involve the use or dependence on alcohol, any narcotic drug, or any other self-administered intoxicant.
- OR**
- b. ☐ The charge(s) or conviction(s) to be sealed did involve the use or dependence on alcohol, any narcotic drug, or any other self-administered intoxicant, and I have been rehabilitated.
4. Restitution.
- a. ☐ I was not ordered to pay restitution for the charge(s) or conviction(s) to be sealed.
- b. ☐ I was ordered to pay restitution for the charge(s) or conviction(s) to be sealed, and I have paid all restitution in full.
5. Prior Sealing Petitions.
- a. ☐ I have not had a sealing petition previously granted under the petition process in Va. Code § 19.2-392.12.
- b. ☐ I have had a sealing petition previously granted under the petition process in Va. Code § 19.2-392.12. Number of petitions previously granted: ☐ One ☐ Two
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E. ACKNOWLEDGMENTS.

Check each box to acknowledge that you have read and understand each statement below.

1. ☐ I understand that I am required to provide a copy of this petition by delivery or by first-class mail, postage prepaid, to the Commonwealth's Attorney for the county or city where the petition is filed.
2. ☐ I understand that after this petition is filed, I am required to request that the Central Criminal Records Exchange (CCRE) electronically forward a copy of my Virginia and national criminal history record to the circuit court where the petition is filed. *(Instructions on how to request your criminal history record are available through the Virginia Department of State Police.)*
3. ☐ I understand that my petition may be denied, with or without a hearing, if the charge(s), conviction(s), or ancillary matter(s) listed in this petition are not eligible for sealing.

4. ☐ I understand that if my petition for sealing is granted, it will not restore my civil rights or firearm rights.
5. ☐ I understand that if my petition for sealing is granted, I will still be required to pay any outstanding fines, costs, forfeitures or penalties for charge(s) or conviction(s) that are ordered sealed.

☐ **ADDENDUM.** I am requesting to seal multiple charges, convictions or ancillary matters, and I have attached an ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A)..... addendums are attached to this petition and are incorporated herein.
NUMBER

.....
DATE

SIGNATURE OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER (VSB No.)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
.....
PRINTED NAME OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B
.....
ADDRESS OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER

555-0142 ext. 44821
.....
TELEPHONE NUMBER OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
CITY, STATE, ZIP OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
EMAIL ADDRESS OF ☐ PETITIONER
☐ ATTORNEY FOR PETITIONER